

**Superior Court of the State of California
County of Orange**

DEPT C20 TENTATIVE RULINGS

Judge Theodore Howard

The court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5220. If no appearance is made by either party, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 4:00 p.m. on the day before the hearing.

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Date: July 30, 2026

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1.	Cheng v. Shellpoint Mortgage Servicing 25-1523342	The unopposed Motion to be Relieved as Counsel of Record, filed by attorney Tony Cara of CDLG, PC as to the representation of plaintiff Tiffany M. Cheng is GRANTED . Mr. Cara is to submit a new proposed order reflecting the currently pending dates for the Case Management Conference and the Demurrer.

		The Order will become effective upon filing of a proof of service reflecting service of the resulting Order on the client. <i>Moving counsel is ordered to give notice of this ruling.</i>
2.	State Farm General Insurance Company v. Gyroor LLC 213-1322521	The motion by Tianyu Ju and Glacier Law Group to be relieved as counsel for defendant Shenzhen Lanxun Trade Co., Ltd. is DENIED, for the reasons set forth herein. <i>Code of Civil Procedure §1013a</i> requires the proof of service to be supported by an affidavit. <i>Code of Civil Procedure §2013a</i> sets forth the requirements for an affidavit, including a requirement that the signer certify that the statements are made "under penalty of perjury under the laws of the State of California that the foregoing is true and correct." Here, the proof of service was executed by Li Yang in New York and does not comply with the foregoing Code sections. Accordingly, the motion is DENIED. <i>Attorney Tianyu Ju is ordered to give notice of this ruling.</i>
3.	Raintree Del Prado LLC v. Sheikan 24-1394670	Before the court is an unopposed motion filed by attorneys at Downtown LA Law Group ("Attorneys"), requesting to be relieved as counsel of record for defendant/cross-complainant Tatijana N. Sheikhan ("Client"). The motion is GRANTED. Attorneys have complied with the requirements of <i>California Rule of Court 3.1362</i>, and filed and served forms MC-051, MC-052, and MC-053 on Client and on the other parties in this action. The court finds Attorneys have provided a valid and sufficient reason for requesting to be relieved as counsel for Client. The motion is GRANTED. The court notes the order relieving counsel shall not be effective until Attorneys file proof of service of the ruling on Client. Until such time, Attorneys shall remain counsel of record. <i>Attorneys are ordered to give notice of this ruling.</i>
4.	Zeng v. Reitzfeld 24-1383451	Before the Court at present is the Motion to Bifurcate filed by Defendant Donald K. Reitzfeld ("Reitzfeld") and opposed by plaintiffs John Fei Zeng and Jia Chun Yuan ("Plaintiffs"). The motion is DENIED, without prejudice. <i>Code of Civil Procedure section 598</i> provides that the court may order certain issues tried before others "when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby[.]" (<i>Code Civ. Proc.</i>, § 598.) Similarly, <i>Code of Civil Procedure section 1048(b)</i> provides: "The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by

		jury required by the Constitution or a statute of this state or of the United States." (<i>Code Civ. Proc.</i>, § 1048(b).) The Court has considered the arguments and evidence submitted by both parties and determines, at this time, bifurcation as requested by Reitzfeld is not warranted. Accordingly, the motion is DENIED, without prejudice. <i>Counsel for Plaintiffs shall give notice of this ruling.</i>
5.	LVNV Funding LLC v. Gomez 21-1219223	The motion to enforce settlement filed by plaintiff LVNV Funding LLC (Plaintiff) is CONTINUED TO OCTOBER 1, 2026, AT 1:30 P.M. IN DEPARTMENT C20. There is no proof of service filed showing defendant Jasmine Gomez (Defendant) was served with this motion. The motion is therefore CONTINUED as stated above. Plaintiff is ordered to file a proof of service showing Defendant was properly and timely served with the motion. Said proof of service shall be filed at least 10 court days prior to the hearing. <i>Counsel for Plaintiff shall give notice.</i>
6.	Tykonina v. In-N-Out Burgers, Inc. 25-1470899	Before the Court is a motion by In-N-Out Burgers, Inc. (Defendant) for an order quashing Plaintiff's PMK deposition notices for Mark Courtney and John Mark Jennings. For the reasons set forth herein, the motion is DENIED. Attached as Exhibit A to the Declaration of Jessica Marsella is a "Notice of Videotaped Deposition Of Person(S) Most Qualified At In-N-Out Burgers, Inc., And Request For Production Of Documents At Deposition." This deposition notice was served on 3/4/26. Neither Mark Courtney nor John Mark Jennings are mentioned in the deposition notice. The Court notes that it may be that Defendant intended to file a different motion or submit different exhibits because in parts of the motion there is reference to deposition notices for Courtney and Jennings being served on 4/21/26. (See page 4, lines 22-26) However, those deposition notices are not part of the court's file. Accordingly, the Defendant's request "for an order quashing Plaintiff's PMK deposition notices for Mark Courtney and John Mark Jennings" is DENIED. Defendant also requests a protective order be entered "because the categories [in the deposition notices] are not tailored to either witness." (Motion at 10:1) However, because the deposition notices are not part of the record, the request for a protective order is DENIED.

		Defendant also requests appointment of a referee to supervise the deposition process. While there has been a lot of letter writing between counsel, there is insufficient evidence to warrant a referee. The court does not find "exceptional circumstances" exist based on the record submitted. (<i>Rule 3.920(c)</i>.) Accordingly, the request for a referee is DENIED. The requests by both parties for sanctions are DENIED. The court finds that under the circumstances, imposition of sanctions would be unjust. (<i>Code of Civil Procedure §2025.420(h)</i>.) <i>Counsel for plaintiff is ordered to give notice.</i>
7.	Kumar v. Children's Hospital of Orange County 23-1361438	Before the Court at present is the Motion to Set Preferential Trial Date, filed on 6/3/26 by Plaintiff Arjun Kumar, a minor, by and through his Guardian Ad Litem, Pavan Kumar ("Plaintiff"). The Motion demonstrates grounds for trial priority under <i>C.C.P. § 36(b)</i> and asks here to confirm priority for the existing 4/19/27 trial date. That date comports with the requirements of <i>C.C.P. § 36(g)</i>. The Court therefore GRANTS the Motion, to provide priority in accordance with <i>C.C.P. § 36(b)</i> and (<i>g</i>) for the 4/19/27 trial date. <i>Counsel for Plaintiff is to give notice.</i>
8.	Medina v. Unilogic Healthcare Management LLC 26-1554435	Before the Court is a motion to compel arbitration and stay proceedings filed by defendant Unilogic Healthcare Management LLC (Defendant) against plaintiff Leslie Medina (Plaintiff). For the reasons set forth below, the motion is GRANTED, subject to severance of the cost-splitting provision. On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court must grant the petition to compel arbitration unless it finds: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for rescission of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (<i>Code of Civ. Proc. § 1281.2</i>.) Here, Defendant met its burden to show a written arbitration agreement exists between the parties. (<i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 413 [burden]; Declaration of Maggie Nava ("Nava Decl.") ¶¶ 3, 4, Ex. B.) The burden shifted to Plaintiff to demonstrate the agreement is unenforceable. (<i>Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565.) Plaintiff argues the arbitration agreement is unconscionable. Where the court determines, as a matter of law, that a contract or any provision in the contract is unconscionable at the time it was made, the court may refuse to enforce the contract or clause or may limit the application of the clause to avoid an unconscionable result. (<i>Civ. Code § 1670.5</i>.) The doctrine has "both a procedural and a substantive element, the former focusing on oppression or surprise due to unequal

bargaining power, the latter on overly harsh or one-sided results.” (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114.) “A sliding scale is applied so that the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (*Serafin v. Balco Properties, Ltd., LLC* (2015) 235 Cal.App.4th 165, 178.)

Other than pointing to Defendant’s evidence showing Plaintiff signed the agreement as part of Defendant’s onboarding process, Plaintiff failed to present any evidence showing any circumstances of oppression or surprise – not even her own declaration. Given minimal procedural unconscionability, Plaintiff must demonstrate significant substantive unconscionability. Plaintiff points to two provisions as substantively unconscionable: (1) the arbitration cost-splitting provision in paragraph 10; and (2) remedies provision in paragraph 7.

Cost-splitting provision: “[W]hen an employer imposes mandatory arbitration as a condition of employment, the arbitration agreement or arbitration process cannot generally require the employee to bear any type of expense that the employee would not be required to bear if he or she were free to bring the action in court.” (*Armendariz, supra*, 24 Cal.4th at 110-111.) A provision requiring each party to bear its own attorney fees, thereby impliedly waiving the employee’s right to statutory fees, is substantively unconscionable. (*Serafin v. Balco Properties, Ltd., LLC* (2015) 235 Cal.App.4th 165, 184-185.) To the extent paragraph 10 seeks to impose arbitration-specific costs to Plaintiff, including language regarding the employees’ financial representations and warranties and the parties’ option to terminate arbitration based on the arbitrator’s ruling on fees/costs, the Court finds paragraph 10 substantively unconscionable. (Nava Decl., Ex. B at p. 68 ¶ 10.)

Remedies provision: An arbitration agreement that fails to provide for all types of relief that would be available in court is substantively unconscionable. (*Armendariz, supra*, 24 Cal.4th at 116.) Here, paragraph 7 appears to restrict an award of punitive damages and attorney fees but contains clear language that such remedies are available where “statutorily allowed.” (Nava Decl., Ex. B at p. 68 ¶ 7.) This provision does not restrict Plaintiff’s ability to obtain attorney fees under *Government Code section 12965, subdivision (b)* and *Labor Code sections 218.5, 226 and 1194*, and punitive damages under *Civil Code section 3294*, as she contends. The Court finds paragraph 7 is not substantively unconscionable.

Severance: To assess whether unconscionable terms may be severed, a court considers whether the unconscionable provision is “central” or “collateral” to the purpose of the contract. “The overarching inquiry is whether the interests of justice would be furthered by severance.” (*Armendariz v. Foundation Health Psychcare Services, Inc., supra*, 24 Cal.4th at 123-124.) Here, the Court finds the central purpose of the arbitration agreement is mutual and binding arbitration of employment disputes before a neutral arbitrator, which is subject to judicial review.

		The cost-splitting and related terms contained in paragraph 10 are collateral to the purpose of the contract. The Court hereby severs the following language in paragraph 10: “[A]ny fees to arbitrate - including but not limited to the administration fee and arbitrator’s hourly rate - shall be split by Employer and Employee” “Employee represents and warrants that she is not financially challenged, not in poverty as set forth in Code Civ. Proc., § 1284.2, and is financially capable to afford her own fees and expenses arising from arbitration as set forth in this paragraph, and if she becomes financially incapable to afford the fees and costs arising from arbitration as set forth in this paragraph during her course of employment, she will inform the Employer so that the parties would be able to renegotiate the terms of this Arbitration Agreement and/or this paragraph.” “Notwithstanding the foregoing, in the event that at the outset of arbitration proceeding, the arbitrator decides that one party must pay all the arbitration fees and/or that the fee split is not fair, should be disregarded, and/or is unconscionable, then each party has the option to immediately terminate arbitration and proceed with seeking remedies in the state court without any penalties pursuant to California Code of Civil Procedure Sections 1281.97 et. seq., including California Code of Civil Procedure Section 1281.98 and/or any applicable then current rules or regulations, as if the arbitration proceedings never existed.” The Court otherwise finds the parties’ arbitration agreement enforceable. The motion is therefore GRANTED, subject to severance of unconscionable provisions, and the proceedings STAYED pending arbitration. <i>Counsel for Defendant shall provide notice of this ruling.</i>
9.	Clinician Home Health Services Inc. v. Tamayo 24-1372698	The Motion to be Relieved as Counsel, filed on 5/20/26 by Attorney William J. Mall III of the Law Office of William J. Mall, III, as to the representation of Defendant MacGroup and Associates, LLC, is CONDITIONALLY GRANTED. The Motion is primarily in order and unopposed. However, the proposed order needs revisions [check box 5(a); fill in re IDC for Box 7; update trial date and time for Box 9]. The Motion is therefore CONDITIONALLY GRANTED, subject to submission of a revised proposed order. Relief will be effective upon filing of a proof of service of the signed order upon the client. <i>Moving counsel is to give notice of this ruling.</i>
10.	McQuade v. City of Anaheim	Before the Court is a motion to strike filed by defendants City of Anaheim (the City) and Rebecca Cherene (Cherene)(collectively,

	26-1550967	Defendants) regarding allegations in the Complaint filed by plaintiff Michael Jordan Jr. McQuade (Plaintiff). As set forth more fully below, the motion is GRANTED, in part, and DENIED, in part. The court may strike out any irrelevant, false or improper matter asserted in any pleading. (<i>Code of Civ. Proc. § 436, subd. (a).</i>) A motion to strike is the proper vehicle to attack a claim for punitive damages. (<i>Code of Civ. Proc. §§ 435-436; Truman v. Turning Point of Central Calif., Inc.</i> (2010) 191 Cal.App.4th 53, 63.) A plaintiff may recover exemplary or punitive damages where it is proven that "the defendant has been guilty of oppression, fraud or malice." (<i>Civ. Code § 3294, subd. (a).</i>) <u>Allegations against City:</u> Plaintiff does not oppose the motion to strike punitive damages and references to "age" in paragraph 149 of the Complaint. The motion is therefore GRANTED as to these allegations against the City. <u>Allegations against Cherene:</u> In addition to any other available remedy, an individual can be held personally liable for harassing another employee in violation of California Fair Employment and Housing Act (FEHA). (<i>Gov. Code § 12940, subd. (j)(3); McClung v. Employment Develop. Dept.</i> (2004) 34 Cal.4th 467, 475.) Punitive damages may be awarded in civil actions for FEHA violations. (<i>Commodore Home Systems, Inc. v. Sup. (Brown)</i>(1982) 32 Cal.3d 211, 221; <i>Myers v. Trendwest Resorts, Inc.</i> (2007) 148 Cal.App.4th 1403, 1435-1436; see e.g. <i>Weeks v. Baker & McKenzie</i> (1998) 63 Cal.App.4th 1128, 1137, 1167 [affirming award of punitive damages against individual for sexual harassment].) Here, Plaintiff alleges Cherene was his direct supervisor and subjected him to harassment throughout his employment, including making derogatory remarks and criticizing his speech related to his disability. (Compl. ¶¶ 14-24.) The Court finds the allegations are sufficient to support malice and/or oppression. The motion is therefore DENIED as to punitive damages alleged against Cherene. <i>Defendants shall provide notice of this ruling.</i>
11.	Potter v. Gustafson 26-1554580	The recommended ruling will not be posted. Parties are to appear before the court to discuss the alleged failure of defendant Dicker & Dicker, LLP ("Firm") to serve the pending special motion to strike ("Motion") on plaintiff Jeffrey Potter ("Plaintiff"). Plaintiff will be given the opportunity to continue the hearing to August 20, 2026, to allow additional time to prepare an opposition. If Plaintiff wishes to proceed on the merits, the court will then provide its tentative ruling.
12.	Victory Live, Inc, v. Kai Sports and Entertainment Corp. 25-1512515	<i>(Dismissed)</i>
13.	Zamora v. General Motors, LLC	Before the Court is a motion for summary judgment, or summary adjudication in the alternative, filed by defendant General Motors, LLC

	24-1399944	(Defendant) on the complaint of plaintiff Jorge A. Zamora (Plaintiff). For the reasons set forth below the motion for summary judgment is GRANTED. <u>Timeliness</u>: The court rejects Plaintiff's argument that the motion is untimely. A motion for summary judgment must be "heard no later than 30 days before the date of trial, unless the court for good cause orders otherwise." (<i>Code of Civ. Proc. § 473, subd. (a)(3)</i>.) The 30-day cut-off is measured from the trial date in effect when the summary judgment motion is made. Thus, a continuance of the initial trial date "reopens" the time for such motions. (<i>Green v. Bristol Myers Co.</i> (1988) 206 Cal.App.3d 604, 609; <i>Soderberg v. McKinney</i> (1996) 44 Cal.App.4th 1760, 1765, fn. 4.) Although Defendant's motion was filed three days before the then-scheduled trial date, the trial date was continued several times and ultimately taken off calendar. On March 4, 2026, Defendant re-noticed the motion for summary judgment/adjudication to July 30, 2026. (ROA 132, 137.) There being no trial date, the motion is timely. <u>Song Beverly Act claims</u> (1st through 4th causes of action): The Song Beverly Consumer Warranty Act, <i>Civ. Code § 1790 et. seq.</i>, does not apply to vehicles purchased or leased outside of California. (<i>Cummins, Inc. v. Superior Court</i> (2005) 36 Cal.4th 478, 487-90; <i>Davis v. Newmar Corp.</i> (2006) 136 Cal.App.4th 275, 278.) Defendant produced undisputed evidence Plaintiff purchased the subject vehicle in Texas, registered the vehicle in Texas and presented the vehicle for repair in Texas. (Defendant's Separate Statement of Undisputed Material Facts 1-7.) Defendants met its initial burden to show that Plaintiff cannot establish his causes of action under the Song Beverly Act. Plaintiff failed to meet his shifted burden showing a triable issue of fact. The motion is therefore GRANTED as to these claims. <u>Magnuson-Moss claim</u> (5th cause of action): The failure to state a warranty claim under state law constitutes the failure to state a claim under Magnuson-Moss Warranty Act, <i>15 U.S. § 2301 et. seq.</i> (<i>Daugherty v. American Honda Motor Co., Inc.</i> (2006) 144 Cal.App.4th 824, 832-833; <i>West v. Rheem Manufacturing Company</i> (C.D. Cal. 2025) 765 F.Supp.3d 976, 990.) This claim fails because Plaintiff's Song Beverly Act claims fail. The motion is therefore GRANTED as to this claim. <i>Counsel for Defendant shall provide notice of this ruling.</i>
14.	Hammouri v. Ford Motor Company 23-1335621	The "Motion for Summary Judgment" filed on 6/23/25 by Defendant Ford Motor Company ("Ford") is DENIED. The hearing on the Motion was continued pursuant to a stipulation, and then upon an <i>ex parte</i> application by Plaintiff Nahed Hammouri ("Plaintiff"). It was then continued as both sides failed to e-file the unredacted versions of their papers. Yet despite the Court's 7/6/26 Order specifically directing both sides to promptly e-file [conditionally

under seal] the unredacted materials, neither side complied. The parties are reminded that all materials submitted must be e-filed; merely "lodging" unredacted versions does not suffice. (That also applies to Ford's Motion to Seal filed on 6/26/26.)

On the merits, this Motion is effectively a motion for summary judgment only. Although Ford's notice alternatively requests summary adjudication on specific issues, the Separate Statement (ROA 90) fails to address them. Ford's belated attempt to amend its Separate Statement, submitted after Plaintiff's Opposition had been filed, is untimely. Plaintiff's Objection thereto (ROA 198) is **SUSTAINED**.

Ford has failed to establish that summary judgment is warranted here. Plaintiff's First Cause of Action asserts a claim under *Civil Code* §1793.2(d). Ford asserts that it fails as a matter of law because Plaintiff only presented the vehicle for service once before filing this action. (UF 2, 5.) The statute does not require the manufacturer to make restitution or replace a vehicle if it has had only one opportunity to repair that vehicle. (*Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205, 1208; *Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 799.)

It is undisputed that Plaintiff presented the vehicle on 6/7/23. (UF 2.) He then filed suit on 7/11/23. (UF 3.) But Plaintiff claims to have also attempted to obtain service for the same defect a month or so prior to 6/7/23. (AF 7.) He asserts that the dealer's representative at that time refused to assess the vehicle to evaluate Plaintiff's claimed concerns without a significant monetary charge, even though the vehicle was still under warranty. (AF 7.) Ford argues that this claim is not credible. But on a motion for summary judgment, the court may not make credibility determinations, or weigh the evidence. (*McCabe v. American Honda Motor Co.* (2002) 100 Cal.App.4th 1111, 1119.) The opposing party's papers are to be liberally construed. (*Comm. to Save Beverly Highland Homes Ass'n v. Beverly Highland* (2001) 92 Cal.App.4th 1247, 1260.) There is thus a triable issue of fact as to what occurred.

In addition, the statutory scheme at issue here is "manifestly a remedial measure, intended for the protection of the consumer" which "should be given a construction calculated to bring its benefits into action." (*Niedermeier v. FCA US LLC* (2024) 15 Cal.5th 792, 804; *Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1103.) In this context, the Court cannot conclude that Plaintiff's claim is necessarily insufficient as a matter of law, based on the evidence presented here.

The Motion is therefore **DENIED**.

The Evidentiary Objections filed at ROAs 176, 205 and 206, to the extent directed to any evidence material here (see *C.C.P. § 437c(q)*), are **OVERRULED**.

		Plaintiffs Objection filed as ROA 197 is also OVERRULED . <i>Counsel for Ford is to give notice.</i>
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